Showing contexts for: **specific performance property** in Hansraj Jain & Sons & Others vs Santanu Chaudhuri & Others on 8 December, 2009

Context size: Small | Current | Large | Larger

6 to 9 together with the petitioner. In short, the decree was passed by the High Court not only against Respondents 6 to 9 but also against the subsequent purchaser i.e. the petitioner and thus the petitioner was himself the judgment-debtor and it cannot be said that he was a third person in possession and, therefore, relief for possession must be claimed. The contention on behalf of the petitioner is that the relief for possession must be claimed in a suit for **specific performance** of a contract in all cases. This argument ignores the significance of the words "in an appropriate case". The expression only indicates that it is not always incumbent on the plaintiff to claim possession or partition or separate possession in a suit for **specific performance** of a contract for the transfer of the immovable property. That has to be done where the circumstances demanding the relief for **specific performance** of the contract of sale embraced within its ambit not only the execution of the sale deed but also possession over the property conveyed under the sale deed. It may not always be necessary for the plaintiff to **specific**ally claim possession over the property, the relief of possession being inherent in the relief for **specific performance** of the contract of sale. Besides, the proviso to sub-section (2) of Section 22 provides for amendment of the plaint on such terms as may be just for including a claim for such relief "at any stage of the proceeding"."

The defendants also rely on the reference in the report to Section 28 of the **Specific** Relief Act which provides for rescission in certain cases of contracts for sale or lease of immovable property despite a decree for **specific performance**. The defendants

suggest that in view of Section 55 of the Transfer of Property Act and the duty of a vendor to make over possession of the immovable property sold, it would be unwise to divorce possession from a decree for **specific performance** of a contract for sale of an immovable property.

> "16. In a suit for **specific performance** of contract for sale of immovable property containing a stipulation that on execution of the sale deed the possession of the immovable property will be handed over to the purchaser, it is implied that delivery of possession of the immovable property is part of the decree of **specific performance** of contract. ..."

To begin with the defendants' last argument first, it would be presumptuous to conclude that the leave that the plaintiffs obtained under Order II Rule 2 of the Code at the inception of the suit related to a claim for possession. For good or bad, the basis for obtaining such leave has not been clearly spelt out in the plaint. It is equally possible that the plaintiffs reserved a claim for damages on account of the defendants' alleged failure to execute the conveyance. Such a claim would be a part of the plaintiffs' cause of action in the suit and unless simultaneously claimed or liberty reserved pursuant to leave obtained, would be barred.

Sub-section (2) of Section 22 prohibits a Court from granting the reliefs covered by clauses (a) or (b) of sub-section (1) unless it is **specific**ally claimed. The proviso to sub-section permits the plaintiff to amend the plaint at any stage and include a claim for such relief.

Paragraph 16 of the Adcon Electronics case lays down the principle that in a suit for **specific performance** of a contract for sale of an immovable property where the agreement itself contains a stipulation that on the execution of the deed the possession of the property would be made over to the purchaser, it is implied that the delivery of possession is a part of the decree for **specific performance** of such

contract. Such principle is in apparent conflict with the dictum in Babu Lal that the relief of possession is inherent in the relief for **specific performance** of a contract for sale of an immovable property. But in the present context, while considering the immediate issue as to whether this is a suit for land, the Adcon Electronics judgment is the more relevant. The Babu Lal judgment did not turn on the principle that the relief of possession is inherent in the relief for **specific performance** of a contract for sale of an immovable property. What weighed with the Supreme Court in that case was that Babu Lal was a party to the conveyance and had been directed to be as such by the modified decree of the second appellate forum and that he remained bound by his undertaking to demolish the construction that he put up if the previous purchaser obtained a decree in the suit. Adcon Electronics limited the consideration as to whether a suit was a suit for land to assessing whether the agreement sought to be **specific**ally enforced entitled the plaintiff to possession immediately upon or simultaneously with the conveyance being executed. Though it was not noticed in Adcon Electronics as to whether the right to possession inheres in a decree-holder who had been granted **specific performance** of an agreement for sale of an immovable property, it has been laid down that only if the agreement stipulated possession upon conveyance would the suit for **specific performance** of such an agreement for sale of an immovable property be a suit for land. If there was no undertaking furnished to court in the Babu Lal case that implied a positive representation to make over possession, there may have been a more convincing argument of conflict between Babu Lal and Adcon Electronics.